§6023(4)(A) (emphasis added). When armed agents physically occupied the docks facilities, they seized control of the docks even if "Cuba owned the docks." *Post*, at 261 (opinion of KAGAN, J.). Before that seizure, the "concessionaire"—Havana Docks—was "in possession of the works." 1 App. 454; Brief for Respondents 32. After the seizure, the Cuban Government stopped Havana Docks from operating, using, enjoying, possessing, or otherwise "control[ling] the [docks]." *Id.*, at 23. The Cuban Government thereby extinguished Havana Docks' concession *and* "physically occupied" the docks, as the Commission found. 1 App. 257. Those actions constitute confiscation of the docks under Title III.[6]

IV

We conclude that the cruise lines used confiscated property to which Havana Docks owns the claim. Because the Court of Appeals concluded otherwise, it did not reach the cruise lines' remaining arguments against liability. Those arguments are not before us and we do not address them. Accordingly, we vacate the judgment of the Court of Appeals and remand for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE SOTOMAYOR, with whom JUSTICE KAVANAUGH joins, concurring.

I agree with the Court's resolution of the narrow question before it and join the majority opinion in full. I write to

[6] The dissent seemingly does not dispute that the Cuban Government seized control of the docks. See, *post*, at 261. After all, Havana Docks controlled the docks, then "armed officers" took them over. *Ibid.* Congress defined "confiscat[ion]" in the statute to include "seizure by the Cuban Government of . . . control of property." §6023(4)(A). "When a statute includes an explicit definition, we must follow that definition." *Tanzin* v. *Tanvir*, 592 U. S. 43, 47 (2020) (internal quotation marks omitted). Under the statutory definition, the dissent's theory has the surprising consequence that it is not "possible" for a landlord to prematurely seize control of "property it always owned" from a "renter with a lease." *Post*, at 258, 261.

Page Proof Pending Publication

highlight two issues that the Court does not reach but that raise significant concerns for remand or in other future Title III cases.

First, petitioner's reading of Title III, if adopted, could allow it to recover a potentially unlimited amount of money from an unlimited number of people who use the confiscated docks at issue. Here, the Foreign Claims Settlement Commission (Commission) certified that, in 1960, petitioner lost around $9 million from the confiscation of the docks. *Ante*, at 241. The District Court determined that, under Title III, each of the four cruise lines in this case was liable to petitioner for $110 million (after trebling the certified loss plus more than a half-century's worth of interest, and awarding additional legal fees and costs).

On petitioner's interpretation of Title III, however, those awards could be just the beginning. Title III specifies that "any person that . . . traffics in property which was confiscated by the Cuban Government . . . shall be liable" for no less than the value of the claim certified by the Commission, plus interest. 22 U. S. C. § 6082(a)(1)(A)(i). Below, petitioner defended the District Court's awards by arguing, in essence, that "any person" really means "each person," so that each cruise line is liable for the full amount.

Page Proof Pending Publication

If petitioner is correct, then petitioner potentially could recover $110 million from every person who uses the docks in any way. Here, petitioner sued four cruise lines who used the docks, but on its theory, nothing would prevent it from recovering even more if other cruise lines had used the docks in the past or if any cruise line uses them again in the future. Nor would petitioner necessarily be limited to one recovery against each cruise line. It could possibly seek to recover the full $110 million against respondents for each individual cruise; each docking, after all, was potentially an independent instance of trafficking. See 28 U. S. C. § 1603(d) (defining "commercial activity" to mean "either a regular course of commercial conduct or a particular commercial transaction

or act"); 22 U. S. C. § 6023(3) (incorporating that definition); see also § 6023(13)(A)(ii); but see § 6082(f)(1)(A) (appearing to limit plaintiffs to one suit per "subject matter"). Liability could even theoretically extend to third-party retailers aboard respondents' ships, maintenance contractors at respondents' dockyards, and even the nearly one million passengers who paid respondents to sail to Cuba, all of whom arguably "engage[d] in a commercial activity using or otherwise benefiting from" the confiscated docks or "participate[d] in" respondents' commercial activities. §§ 6023(13)(A)(ii)–(iii). In short, this limitless reading of the statute could permit petitioner to recover millions, if not billions, of dollars over and over again, so long as anyone continues to make any commercial use of the docks.

It is unlikely that Congress intended for someone who suffered a finite loss to reap infinite recoveries. Congress defined "confiscated" property to mean property that was seized by the Cuban Government "without the property having been returned or adequate and effective compensation provided." § 6023(4)(A)(i). Congress also created the Commission and tasked it with assessing the value of claims stemming from the Cuban Government's confiscations and made the Commission-certified value a presumptive measure of a Title III plaintiff's recovery. *Ante*, at 241, 243; see § 6082(a)(1)(A)(i). That statutory scheme suggests that Congress intended for the Commission's certification to supply a benchmark for adequate compensation; it does not expressly authorize repeatedly recovering the Commission-certified amount. Furthermore, if the statute is read the way petitioner suggests, then Title III's remedies could potentially violate the Due Process Clause to the extent that the statute imposes penalties against individual defendants that are "so severe and oppressive as to be wholly disproportioned to the offense and obviously unreasonable." *St. Louis, I. M. & S. R. Co.* v. *Williams*, 251 U. S. 63, 66–67 (1919).

Page Proof Pending Publication

Second, there is a significant question as to whether respondents' conduct fell within a statutory exception to Title III liability for "transactions and uses of property incident to lawful travel to Cuba." § 6023(13)(B)(iii); see *ante*, at 243, n. 1, 249, n. 4 (declining to address this exception). Indeed, the Federal Government appears to have previously taken the position that these cruises were lawful and beneficial to both Cuba and the United States.

For example, in 2016, President Obama announced at a joint press conference with Cuban President Raúl Castro that the United States Government had "removed the last major hurdle to resuming cruises and ferry service," which would "mean even more Americans visiting Cuba in the years ahead and appreciating the incredible history and culture of the Cuban people."* The Office of Foreign Assets Control (OFAC), which administers and enforces sanctions by the United States against Cuba, also granted one respondent a license that specifically authorized "carrier services by vessel to, from, or within Cuba in connection with travel or transportation between the United States and Cuba." App. 570. OFAC later amended its regulations "to authorize persons subject to U. S. jurisdiction to provide carrier services by vessel, without the need for specific licenses." 80 Fed. Reg. 56916 (2015). Further, the State Department previously informed petitioner that it would not bring enforcement actions against respondents because of "the clear exclusion" from the definition of "'traffics'" that shields "transactions and uses of property incident to lawful travel to Cuba." App. 834.

Page Proof Pending Publication

To be sure, as petitioner argued below, at the same time the Government made these statements, it also warned re-

*Remarks by President Obama and President Raúl Castro of Cuba in a Joint Press Conference, The Obama White House (Mar. 21, 2016), https://obamawhitehouse.archives.gov/the-press-office/2016/03/21/remarks-president-obama-and-president-raul-castro-cuba-joint-press (archived at perma.cc/2JA3-NTP7).

spondents that their activities had to comply with any applicable regulations and could not exceed the scope of the licenses provided to them. See, *e. g.*, *id.*, at 570–572 (emphasizing additional restrictions on cruises); *id.*, at 869–875 (cautionary letter issued by OFAC). Even so, as the United States explained at argument, "[t]o the extent that Respondents received assurances from appropriate government officials that what they were doing was lawful and authorized," holding them liable for that conduct could "raise due process concerns." Tr. of Oral Arg. 57–58.

As neither the infinite-recovery issue nor the lawful-travel issue was fairly included within the question presented, the Court appropriately does not address either one here. See this Court's Rule 14.1(a). The Court also correctly expresses no view as to other issues unaddressed by the Eleventh Circuit, such as respondents' argument that petitioner's concession was nonexclusive and limited to cargo services, Brief for Respondents 34, and respondents' argument that the Commission's certification violates due process or the Seventh Amendment, *id.*, at 40–42. To the extent any of these or other issues remain and are properly preserved, the Eleventh Circuit should address them in the first instance on remand.

Page Proof Pending Publication

JUSTICE KAGAN, dissenting.

Today the Court misconstrues the Cuban Liberty and Democratic Solidarity Act to allow plaintiffs to recover for trafficking in property that was not theirs. Title III of that Act provides that "any person" that "traffics in property which was confiscated by the Cuban Government on or after January 1, 1959, shall be liable to any United States national who owns the claim to such property." 22 U. S. C. §6082(a)(1)(A). The majority holds that because four commercial cruise lines used docks in the Port of Havana between 2016 and 2019, they can be held liable to Havana Docks Corporation, a U. S. company that built, operated, and once